

Plessy vs. Ferguson

On June 7, 1892, 30-year-old Homer Plessy was thrown in jail for sitting in the "white" car of the East Louisiana Railroad. Plessy was considered Black despite his light skin tone and therefore was required to sit in the "colored" car. He was labeled a Creole of Color, a term that once referred to people in New Orleans who traced some of their ancestors back to the French, Spanish, and Caribbean settlers of Louisiana before the area became part of the U.S.

When Louisiana passed the Separate Car Act, legally segregating common transporters in 1892, a Black civil rights organization decided to challenge the law in the courts. Plessy deliberately sat in the "white" car section and identified himself as Black. He was arrested and the case went all the way to the U.S. Supreme Court. Plessy's lawyer argued that the Separate Car Act violated the 13th and 14th Amendments to the Constitution.

In 1896, the U.S. Supreme Court heard the case and held the Louisiana segregation statute constitutional. One Justice, John Harlan, saw the negative consequences of the decision. "Our Constitution is color-blind, and neither knows nor tolerates classes among citizens. In respect of civil rights, all citizens are equal before the law ..." Harlan said. But he was the only justice who disagreed with the decision. "Separate but equal" became the new guideline.

The Plessy decision stated that separate facilities for Black and white people were constitutional as long as they were "equal." The "separate but equal" doctrine was extended thereafter to cover many areas of public life, such as restaurants, theaters, restrooms, and public schools.

The U.S. Supreme Court's 1896 decision in *Plessy vs. Ferguson* was the first to establish the "separate but equal" doctrine of legalized racial segregation. A series of court decisions and federal laws between 1948 and 1968 tried to address the inequalities in housing that were the result of this case. However, those efforts only dealt with certain areas of the housing market, such as federally funded housing programs. Because of this, their impact was quite limited. It wasn't until Title VIII of the Civil Rights Act of 1968 was enacted that things began to change regarding specific discriminatory practices throughout the housing and real estate industry.